



File No.: EXP202304812

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) requested EXPERIAN BUREAU DE CRÉDITO, S.A. (hereinafter, the respondent) to delete his data included in the Badexcug file, which was denied on the grounds that his data had been confirmed by the reporting entity, Banco Santander. Dissatisfied with this denial, the claimant filed a complaint with this Agency for not having his right to deletion duly addressed.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), on May 3, 2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: After the established period of three months from the filing of the complaint, on May 23, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing period, so that within ten working days it could present the arguments it deemed appropriate.

FOURTH: On June 9, 2023, a document from the respondent was received by this Agency, in response to the forwarding of the complaint made on May 3, 2023, in which it states that upon receiving the complaint forwarded by the Spanish Agency for the Protection of Data, it managed it as a request for the exercise of deletion. As a result of this management, it sent an email denying the requested deletion on the grounds that the data had been confirmed by the reporting entity.

FIFTH: On July 26, 2023, the respondent submitted a new document, in response to the admission agreement, indicating that they had already sent the requested information on June 9, 2023. It adds that they have investigated in the application where they manage the exercise of rights "(...) having found the request for deletion of the data from the Badexcug file to which the claimant refers, received on 07/02/2023 by email through the address ***EMAIL.1. On 14/02/2023, this request was processed (...)” and was resolved by denying it due to the data being confirmed by the reporting entity. The response was sent to the same email address on February 22, 2023, providing a copy.

SIXTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may formulate any arguments they deem appropriate, without submitting any arguments within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure provided for in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the respondent for them to...

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
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3/7

proceed to its analysis, respond to this Agency within one month, and provide evidence of having given the claimant the appropriate response.

The result of this transfer did not allow for an understanding that the claims of the claimant were satisfied. Consequently, on May 23, 2023, for the purposes provided in articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in articles 15 to 22 of the GDPR, regulated in article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. Once this period has elapsed, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of correcting any infringement of the GDPR, including “ordering the data controller or processor to attend to the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to restrict processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to attend to such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the data controller.

C/ Jorge Juan, 6

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise, or defense of legal claims."

V

Conclusion

Article 20 of the LOPDGDD states the following:

"1. Unless proven otherwise, the processing of personal data related to the non-compliance with monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data have been provided by the creditor or by someone acting on their behalf or interest.
- b) That the data refer to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
- c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate. The entity maintaining the credit information system with data related to the non-compliance with monetary,

financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data being blocked during that period.

d) That the data are only retained in the system while the non-compliance persists, with a maximum limit of five years from the due date of the monetary, financial, or credit obligation.

e) That the data related to a specific debtor may only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in consumer credit and real estate credit contract legislation. When the right to limit the processing of the data has been exercised before the system by contesting its accuracy in accordance with Article 18.1(a) of Regulation (EU) 2016/679, the system shall inform those who may consult it according to the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.”

C/ Jorge Juan, 6

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28001 – Madrid

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6/7

f) In the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation carried out, the party that consulted the system must inform the affected individual of the outcome of said consultation.

2. The entities that maintain the system and the creditors, regarding the processing of data related to their debtors, shall be considered joint controllers of the data processing, with the provisions of Article 26 of Regulation (EU) 2016/679 applying. It shall be the responsibility of the creditor to ensure that the requirements for inclusion in the debt system are met, being liable for its non-existence or inaccuracy.

3. The presumption referred to in paragraph 1 of this article does not cover cases where credit information is associated by the entity maintaining the system with additional information not contemplated in that paragraph, related to the debtor and obtained from other sources, in order to carry out profiling of the debtor, particularly through the application of credit scoring techniques.

In the case analyzed here, from the examination of the documentation provided, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, and given that the right to erasure has been duly denied, it is appropriate to dismiss the claim that initiated this procedure.

It should be noted that it is the creditor who is responsible for ensuring that the data complies with the requirements of truthfulness and accuracy established by data protection regulations, since, as such, they are the only ones who have the possibility to include their debtor's data in the file of information on financial solvency and credit and to request the deletion of such data when the debt is non-existent or has been settled.

Current data protection regulations do not provide for a prior payment requirement as a condition for the processing of data in the aforementioned common credit information systems. However, it is necessary for the creditor to have informed the affected party, in the contract or at the time of requesting payment, about the possibility of inclusion in such systems, indicating those in which they participate. They should know that this information can be provided through an electronic address (website) or another means that allows easy and immediate access to it.

It should be added that this Agency is not competent to resolve civil matters, such as those related to the civil or commercial validity of the contract, the accuracy of the amount of the debt, the proper provision of contracted services, or the interpretation of contractual clauses. The determination of the legitimacy of a debt based on an interpretation of the contract signed between the parties and its correct amount must be pursued before the competent administrative or judicial bodies, as it exceeds the Agency's jurisdiction.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for

Data Protection RESOLVES:

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7/7

FIRST: DISMISS the claim made by Mr. A.A.A. against EXPERIAN BUREAU DE CRÉDITO, S.A.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to EXPERIAN BUREAU DE CRÉDITO, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

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